WILL LIVE-IN BE THE DEATH OF MARRIAGE?

Now that the Supreme Court order has opened a vista of possibilities for couples who want to keep their relationship open-ended, it's conceivable that fewer couples will choose to marry. There are signs that the institution of marriage is no longer seen as the alpha and omega of life—particularly by the upwardly mobile urban demographic. The YouGov-Mint-CPR Millennial Survey 2020 found a fourth of its young respondents reluctant to marry. The figure goes up to 35 per cent among those above 30.

As many young professionals see it, marriage sets boundaries to which couples are expected to conform. Marriage is also not just about two individuals, it is rather a communion of two families, with even distant relatives getting drawn into it. "Why should we accept such boundaries when the world is open to us?" asks Tia, a 24-year-old professional from south Kolkata. "Our parents might argue that people should marry to have progeny and take the lineage forward. But do we really need to marry for gratifying our physical needs or having children?"

Many even blame the institution of marriage for problems like dowry and domestic violence. "If you are subjected to abuse in a live-in relationship, you can just break up and walk out. Unlike in a marital relationship, you don't have to undergo a legal process of separation and divorce," says Sunayani, 40, a copywriter in an advertising agency who has been living in with her partner Ankur, 37, a freelance editor, in central Kolkata for the past four years. The couple has been lucky as their family has been accepting of their relationship. "I come from a broken home, so my decision to live with Ankur was warmly accepted," she says. Ankur is grateful that people leave them alone. According to him, a lot of people get "unnecessarily entangled" in the lives of married couples, interfering in every decision. "In the case of live-in couples, people who don't really matter mostly keep away as they have issues with the relationship itself," he says. The couple also believes that married people are prone to getting into extra-marital relationships as "they know the marital relation cannot be ended in a jiffy". "Live-in couples work harder to make the relationship work, as either partner can choose to end it at any moment," says Sunayani. Couples like them are grateful that the legal system has woken up to the need to ensure security and social recognition to live-in partners and their children. "In the years ahead, I'm sure society will be more open to us, and many of us would love to have children," says Kaustav, 35, a sound designer who has been in a relationship with his partner Anuradha Sengupta, 36, for six years. Happy that the judiciary is taking a progressive stand on live-in relationships, Kaustav and Anuradha hope the courts will ensure the rulings are enforced across the country in both letter and spirit. They also hope that live-in couples will be allowed to adopt children at some point and that they will have the same rights as any other child.

> **"PASSING A JUDGMENT IS ONE THING, BUT ASSIMILATING IT IN SOCIAL LIFE FIRST AS PRACTICE AND THEN AS SOCIAL BEHAVIOUR ANOTHER"**
>
> **PRASANTO RAY**
> Professor Emeritus,
> Presidency University, Kolkata

LIVE-IN FOR LIVING HAPPILY EVER AFTER

The next challenge will be for couples to prove they have been living together for a considerable period to ensure their children are entitled to inheritance rights. "There's no specification on how many years couples need to live together to pass the test of legitimacy," says lawyer Firdous Shamim. "However, for the Evidence Act to ratify that couples have lived together under the same roof, a minimum of five years of cohabitation is required." Shamim, who handles many complications arising out of live-in relationships, says that since trust alone is the basic foundation of such relationships, legal provisions are necessary to help people navigate through ambiguous areas better. "In case of complications, it becomes essential to prove that the couples were living together. Mere pictures of the couple or spending a vacation together do not suffice."

Sociologist and psychoanalyst Mahuya Ghosh believes that cultural reservations about live-in relationships stem from the negativity we associate with them. "Let us forget for a while that a live-in relationship is a decision against marriage or a counter to marital status. If we see it as a step to test compatibility before taking the big plunge called marriage instead of a rebellion against it, then we can happily accept the concept," she says.

Perhaps this is why Kaustav and Anuradha's landlord made little fuss when they moved in together. He was hoping a much-needed roof overhead would help cement the relationship of two young people deeply in love. "When we shifted here six years ago, uncle (the landlord) would introduce us as husband and wife to be. We never protested since it pleased him. Initially, people would ask if we were married. But now, after six years of being together, people presume we are married," says Anuradha. They haven't bothered to correct them, for who knows what awaits the couple next. ■

–with Sonali Acharjee